

CLIENT SERVICES AGREEMENT

This Client Services Agreement (the “Agreement”) is entered into between **Bambini Doula Agency**, a California Limited Liability Company (“BDA” or “Agency”), and the **Client**, being the individual who registers and accepts this Agreement through the Bambini Doula Agency platform.

By accessing the platform and accepting this Agreement, the Client agrees to be fully bound by all policies, terms, and conditions stated herein. This Agreement governs the professional relationship between the Client and BDA and establishes the mutual rights and obligations of both parties.

ABOUT BAMBINI DOULA AGENCY

1.1 Who We Are

Bambini Doula Agency is a professional doula services agency based in California. It provides compassionate, evidence-based support to families during pregnancy, birth, and the postpartum period. BDA connects qualified doulas with families and serves as the official agency for all engagements.

1.2 Services Offered

BDA offers two primary categories of doula services:

- **Birth Doula Services** include prenatal support, continuous labor and delivery assistance, and postpartum follow-up.
- **Postpartum Doula Services** include in-home newborn care, lactation support, recovery assistance, and emotional support.

All service details, availability, and terms are managed through the BDA platform and confirmed at the time of booking.

1.3 Independent Contractor Status

All doulas engaged through BDA operate as employees or independent contractors of the agency and are not employees of the Client. Nothing in this Agreement creates an employer-employee relationship, partnership, or joint venture between the Client and any doula or between the Client and BDA.

1.4 Doula Qualifications

BDA ensures that all doulas possess the necessary training, certifications, and professional skills to provide competent care. Services are delivered in accordance with industry standards. However, doulas are **not medical professionals** and do not provide medical procedures, diagnoses, or advice.

CLIENT RESPONSIBILITIES & CONDUCT

2.1 Accurate Information

The Client must provide accurate, complete, and up-to-date information during registration and throughout the engagement. This includes health details and household information necessary for safe service delivery.

2.2 Safe Working Environment

The Client is responsible for maintaining a safe, clean, and respectful environment for doulas. This includes ensuring the absence of hazards and respectful behavior from all household members.

2.3 Respectful Conduct

The Client agrees to treat doulas with dignity and respect. Prohibited behavior includes verbal abuse, threats, harassment, physical aggression, discrimination, or attempts to force services outside the agreed scope. Such actions may result in immediate termination without refund.

2.4 Health Disclosure

The Client must inform BDA of any communicable illness or safety risks in the household. Services may be paused until the environment is deemed safe.

2.5 Non-Solicitation of Doulas

The Client agrees not to directly hire or engage any BDA doula outside the platform during the Agreement or within 12 months after termination. Violations may result in legal consequences and referral fees.

DOULA CONDUCT & AGENCY POLICIES

3.1 Professional Standards

All doulas must maintain high professional standards, including respectful communication, honoring client autonomy, maintaining confidentiality, and avoiding medical or inappropriate involvement.

3.2 Scope of Services

Doula services are strictly non-medical and include emotional, physical, and informational support only. Doulas do not perform medical procedures, prescribe treatments, or provide legal or financial advice.

3.3 Backup Doula Policy

If the assigned doula is unavailable, BDA will make reasonable efforts to provide a qualified replacement without altering the Client's agreed terms.

3.4 Doula Safety & Right to Withdraw

BDA prioritizes doula safety. If an unsafe or hostile environment is identified, BDA may immediately terminate services and retain all payments due.

TERMINATION OF AGREEMENT

4.1 Termination by Client (Birth Services)

The Client may terminate before labor begins with written notice. Payments are generally non-refundable except as stated in refund policies.

4.2 Refund Policy (Birth Services)

Refunds depend on circumstances such as late notification or delayed doula arrival. Partial refunds may apply in specific cases.

4.3 Termination by Client (Postpartum Services)

Postpartum services may be terminated with 14 days' written notice. The Client must pay for services rendered until the termination date.

4.4 Termination by BDA

BDA may terminate the Agreement with two weeks' notice or immediately in cases of non-payment, safety concerns, or policy violations.

4.5 Effect of Termination

Termination ends most obligations except those related to confidentiality, payments, indemnification, and non-solicitation.

HEALTH, SAFETY & LIABILITY

5.1 Health Precautions

BDA follows public health guidelines. The Client acknowledges inherent risks associated with in-home care.

5.2 Client Safety Concerns

The Client may request removal of a doula if safety concerns arise and must report issues with evidence within two business days.

5.3 Illness & Communicable Disease Waiver

The Client assumes full responsibility for health risks and releases BDA from liability related to illness transmission, including COVID-19.

5.4 Indemnification

Both parties agree to indemnify each other against claims resulting from negligence or misconduct.

5.5 Limitation of Liability

BDA's liability is limited to the total amount paid by the Client. No liability is assumed for indirect or consequential damages.

CONFIDENTIALITY

BDA agrees to protect all Client information and only disclose it when necessary or authorized. The Client must also maintain confidentiality of BDA's internal operations. Exceptions apply for publicly known or legally required disclosures.

SECTION 7 — GENERAL PROVISIONS

This section covers force majeure, notices, dispute resolution through arbitration, governing law (California), entire agreement clauses, severability, waiver, joint liability, electronic acceptance, and assignment rights.

SECTION 8 — ACKNOWLEDGMENT & ACCEPTANCE

By accepting this Agreement electronically or signing, the Client confirms that they have read, understood, and agreed to all terms. This acceptance is legally binding and equivalent to a handwritten signature.